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CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Defendant Universal Protection Service, LP's Motion for Protective Order is denied.

Plaintiff's request for Sanctions is granted in the amount of \$1,050, payable within 30 days.

To compel the deposition of a party to an action or its officer, director, managing agent, or employee, the deposing party need only serve a notice in compliance with Code of Civil Procedure section 2025.240. (C.C.P., § 2025.280(a).) Nothing further is needed. Where the deponent is a corporation, "the deposition notice shall describe with reasonable particularity the matters on which examination is requested." (C.C.P., § 2025.230.) The corporation must then designate and produce at the deposition the person who is most qualified to testify as to the matters described. (*Ibid.*)

C.C.P. § 2025.420 provides that "the court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (C.C.P., § 2025.420(b); see *Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 316—§ 2025.420(b) provides "*nonexclusive* list of permissible directions that may be included in a protective order" [emphasis in original].) Generally, this requires a showing that the burdens involved in the deposition proceeding clearly outweigh whatever benefits are sought to be obtained thereby. (See C.C.P., § 2017.020(a).) The burden is on the moving party to establish "good cause" for the requested relief. (C.C.P., § 2025.420(b); see *Emerson Elec. Co. v. Superior Court* (1976) 16 Cal.4th 1101, 1110; *Nativi, supra*, 223 Cal.App.4th at 318.) Ultimately the granting or denial of a protective order rests in the judge's sound discretion. (*Nativi, supra*, 223 Cal.App.4th at 316-317.) If complete relief is denied, the court may nevertheless impose terms or conditions upon which the deposition may proceed. (C.C.P., § 2025.420(g).) Courts have discretion in issuing, approving, or modifying such protective orders. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 316; see also *Coalition Against Police Abuse v. Superior Court* (1985) 170 Cal.App.3d 888, 904.)

The court may grant a protective order only upon a showing of good cause. (C.C.P., § 2025.420(b).) Good cause requires demonstrating that the discovery sought would cause "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (*Id.*) The burden of establishing good cause rests on the moving party. Defendant contends good cause exists because: Plaintiff seeks an impermissible "second bite of the apple" by re-deposing Allied's PMK on topics already covered; the categories for the second deposition are "substantively the same" as the first; and Allied already produced a PMK who provided 5.5 hours of testimony and concluded the deposition without any representation that Plaintiff intended to leave it open.

Below is a comparison of the topics between the two deposition notices:

Second PMK Deposition Notice Topics	First PMK Deposition Notice Topics	Classification	Analysis
1. 2019 Termination - Specific conduct/policy violation that led to Mimms's September 2019 termination; identity of decision-maker(s); documentation; policy provision(s) violated; "not eligible for rehire" designation criteria	4. Information related to the hiring, background, and qualifications of Defendant Mimms	New/ expanded	First deposition topic addressed hiring and qualifications broadly. Second topic narrows to the <i>2019 termination specifically</i> , a distinct event. Wells disclaimed knowledge: "not privy to that information," directed to Kiet Phan. Termination is conceptually distinct from hiring/background
2. WinTeam System - Configuration 2019-2022; capability to flag "not eligible for rehire"; how flags associated with employee records; procedures to access flags; whether Mimms's 2019 designation entered/maintained; G4S records integration; why WinTeam not queried before Mimms continued as employee	3. & 4. Policies/procedures regarding hiring, training, supervision, conduct; Information re: hiring, background, qualifications of Mimms	New	First deposition topics covered general hiring policies; WinTeam is a <i>specific database system</i> . No testimony about WinTeam appears in record. Wells testified he was "unaware of the exact background process" used during G4S acquisition.
3. G4S Acquisition Protocols - Procedures to evaluate/screen/background-check G4S employees after October 2021 acquisition; whether protocols required screening against Allied's own database; decision-making for Canyon Lake account; communications about Mimms; who approved Mimms	3. & 4. Policies/procedures regarding hiring, training, supervision, conduct; Information re: hiring, background, qualifications of Mimms	New	First topics addressed general hiring policies, not the <i>specific acquisition integration</i> . Wells testified he "was unaware of the exact background process" Applied used when it acquired G4S and merely believed Allied "just took the G4S background" without

continuing without querying Allied's records.			knowing how it was reviewed.
4. Sterling Infosystems Background Check - Scope, databases queried, criteria; instructions given to Sterling; whether Allied could request search of own employment database; reason Allied's database not included; communications with Sterling.	4. Information related to the hiring, background, and qualifications of Defendant Mimms	New	"Sterling Infosystems" does not appear once in October 15, 2025 transcript. Wells testified he was "not involved" in whatever background check was performed. Topic 4 from first deposition is broad; Sterling Infosystems inquiry is <i>specific vendor inquiry</i> .
5. Six Policy Violations - Conduct underlying each; whether any involved inappropriate conduct with residents; who approved/reviewed each; whether Level 3 triggered mandatory client notification; reason Canyon Lake not notified of violations; documents re: whether to remove Mimms from account.	8, 9: Disciplinary actions involving Defendant Mimms; Complaints or allegations of misconduct involving Defendant Mimms	Expanded	Both depositions address disciplinary violations. Plaintiff acknowledges "some overlap" but contends specific sub-questions were never explored: whether escalation to Level 3 triggered <i>mandatory client notification obligation</i> and <i>why Canyon Lake was never informed</i> . Defendant provided extensive testimony on disciplinary records, but disputed whether notification obligations were covered.
6. Internal Communications re: Continuing Mimms on Account - Communications about removing Mimms; notifying Canyon Lake; identity of persons with knowledge of violations while Mimms remained assigned; nine-page email chain from Wells deposition (authors,	11. Communication s regarding Defendant Mimms' conduct or employment.	Expanded	Both address communications. Second topic narrows to <i>specific decision-making communications about keeping Mimms assigned</i> and identifies a <i>specific nine-page email chain</i> introduced at first deposition (Exhibit 3) but never